

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JUSTICE LOPEZ, AN INFANT BY HIS FATHER AND
NATURAL GUARDIAN, RAUL LOPEZ AND RAUL LOPEZ,
INDIVIDUALLY,

Plaintiffs,

-against-

THE CITY OF NEW YORK

Defendants.

Filed: _____

INDEX NO.

Plaintiffs designate New
York as the place of trial.

S U M M O N S

The basis of venue is
Place of Occurrence

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiffs' attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: Astoria, New York
October 30, 2014

SACCO & FILLAS, LLP
Attorneys for Plaintiffs
31-19 Newtown Avenue
Seventh Floor
Astoria, New York 11102
(718) 746-3440

THE CITY OF NEW YORK
Comptroller's Office of the City of New York
Manhattan Municipal Building
1 Centre Street Room 1220
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

INDEX NO.

JUSTICE LOPEZ, AN INFANT BY HIS FATHER AND
NATURAL GUARDIAN, RAUL LOPEZ AND RAUL LOPEZ,
INDIVIDUALLY,

VERIFIED COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK,
Defendants.

Plaintiffs, by their attorneys, SACCO & FILLAS, LLP, as and for their Verified
Complaint, respectfully allege, upon information and belief:

1. The plaintiff, RAUL LOPEZ, at all times herein mentioned was and still is a resident of the county of Queens and State of New York.
2. The infant-plaintiff, JUSTICE LOPEZ, at all times herein mentioned was and still is a resident of the county of Queens and State of New York.
3. The plaintiff RAUL LOPEZ is the father and natural guardian of the infant, JUSTICE LOPEZ.
4. At all times herein mentioned, defendant THE CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

NOTICE OF CLAIM

5. Prior to the commencement of this action, a notice of claim in writing was served on within 90 days of April 1, 2014 on behalf of RAUL LOPEZ AND INFANT-PLAINTIFF JUSTICE LOPEZ upon THE CITY OF NEW YORK in accordance with Section 50-e of the General Municipal.
6. Prior to the commencement of this action, notice of the intention of RAUL LOPEZ AND INFANT-PLAINTIFF JUSTICE LOPEZ to commence an action, unless the

claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of RAUL LOPEZ AND INFANT- PLAINTIFF JUSTICE LOPEZ upon THE CITY OF NEW YORK.

7. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK neglected and has refused to pay said claim or adjust same.
8. A hearing pursuant to General Municipal Law 50-h has not been fully completed.
9. This action is commenced within one (1) and ninety (90) days from April 1, 2014, the date of the wrongful detainment as herein set forth occurred.

AS AND FOR A FIRST CAUSE OF ACTION FOR JUSTICE LOPEZ

10. Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.
11. On or about April 1, 2014, at approximately between 3:00PM and 4:00PM, at 10th Avenue and Dykman Street, in the County of New York, City and State of New York, plaintiff RAUL LOPEZ was falsely detained by police officers in front of infant plaintiff JUSTICE LOPEZ.
12. By reason of the false detainment of plaintiff RAUL LOPEZ, infant plaintiff JUSTICE LOPEZ suffered severe mental anguish, trauma, distress of mind and body, and significant emotional pain and suffering, as well as embarrassment in front of the community.
13. Plaintiff JUSTICE LOPEZ, an infant by his parent and natural guardian, RAUL LOPEZ, because of the foregoing reckless and malicious actions by defendants THE CITY OF NEW YORK & THE NEW YORK CITY POLICE DEPARTMENT, is entitled to exemplary and punitive damages against the defendants in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS FOR A SECOND CAUSE OF ACTION FOR RAUL LOPEZ FOR

WRONGFUL DETAINMENT

14. Plaintiff RAUL LOPEZ repeats and realleges each and every allegation contained in paragraphs "1" through "13" of the Complaint as if fully set forth at length herein.
15. On or about April 1, 2014, at approximately between 3:00PM and 4:00PM, at 10th Avenue and Dykman Street, in the County of New York, City and State of New York, plaintiff RAUL LOPEZ was falsely detained by police officers.
16. The detainment was done by the defendants, THE CITY OF NEW YORK, through their servant, agent, and/or employee.
17. The defendants, THE CITY OF NEW YORK, through their servant, agent, and/or employees, detained plaintiff RAUL LOPEZ without probable cause or justification, and were designed to harass and intimidate plaintiff RAUL LOPEZ, to embarrass plaintiff RAUL LOPEZ in front of his family, including infant plaintiff JUSTICE LOPEZ, as well as embarrass plaintiff RAUL LOPEZ in the community, friends, other relatives, employer, and co- employees, and to subject plaintiff RAUL LOPEZ to a possible arrest charge, and in term, a possible term of imprisonment.
18. The detainment against the plaintiff was without probable cause or justification, and were designed to harass and intimidate the plaintiff, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees.
19. The defendant's conduct constituted wrongful detainment on the part of the defendant against the plaintiff, and this wrongful detainment has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.
20. At all times herein mentioned, RAUL LOPEZ, was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by the CITY OF NEW YORK.
21. The detainment was with actual malice against the plaintiff, RAUL LOPEZ.
22. By reason of the wrongful detainment, RAUL LOPEZ, was deprived of his liberty and was subjected to scorn and ridicule. Plaintiff suffered pain and distress of mind and

body and sustained significant emotional pain and suffering. Plaintiff suffered shock and embarrassment. Petitioner suffered losses and was degraded in the esteem of the community.

23. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.
24. The defendants' conduct was willful, wanton, reckless, malicious and/or exhibited a gross indifference to, and a callous disregard for human life, safety and the rights of others, and more particularly, the rights, life and safety of RAUL LOPEZ as a result of the defendant's wrongful detainment.
25. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.
26. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR ABUSE OF PROCESS

27. Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.
28. The defendants herein, THE CITY OF NEW YORK wrongfully and maliciously and with intent to injure plaintiff, detained the Plaintiff.
29. By reason of the foregoing abuse of process plaintiff was deprived of his liberty, suffered pain and distress of mind and body and sustained significant emotional pain and suffering and was compelled to employ an attorney.
30. The above acts constituted reckless, wanton misconduct and were willfully and maliciously directed against the plaintiff.
31. The plaintiff, because of the foregoing reckless and malicious actions, is entitled to exemplary or punitive damages against the defendants, THE CITY OF NEW YORK

in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

32. The false detainment were encouraged, aided, abetted, and incited voluntarily and willfully by the defendants, THE CITY OF NEW YORK, defendant' agents, servants, and/or employees.
33. At all times herein mentioned plaintiff, RAUL LOPEZ, was maliciously and without probable reason or cause subjected to treatment similar to those inculpated in criminal actions, of which he did not participate in nor deserve such treatment.
34. At all times herein mentioned, the defendants THE CITY OF NEW YORK were in violation of plaintiff RAUL LOPEZ'S civil rights under 42USC 1983 in that claimant was deprived of his rights, privileges and ammunities secured by the Constitution and laws of the U.S.A. and the New York State constitution by one who under color of a statute or regulation of a state, caused claimant to be so deprived, and there were further violations of claimant's rights and privileges secured to him under the Constitution of the U.S.A. and State of New York.
35. By reason of the false detainment, plaintiff RAUL LOPEZ was deprived of his liberty and was subjected to scorn and ridicule. Plaintiff RAUL LOPEZ suffered physical injury, distress of mind and body, and significant emotional pain and suffering, as well as embarrassment in front of the community.
36. Due to defendant's negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST THE DEFENDANTS

37. That the plaintiff, RAUL LOPEZ, repeats, reiterates and realleges paragraphs numbered "1" through "36" of this Complaint inclusive with the same full force and effect as if more fully set forth herein at length.
38. That said incident and resulting injuries to the plaintiff, RAUL LOPEZ were caused

solely as a result of the unintentional consequence of an intentional act on the part of the detaining officer, without any culpable conduct on the part of the plaintiff, RAUL LOPEZ, contributing thereto.

39. That as a result of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST THE DEFENDANTS FOR INTENTIONAL INFLICTION OF
EMOTIONAL DISTRESS

40. Plaintiff repeats and realleges each and every allegation contained in the above paragraphs of the Complaint as if fully set forth at length herein.
41. Defendants intentionally and deliberately inflicted emotional distress on RAUL LOPEZ by wrongfully detaining plaintiff, or by abusing the lawful process by unlawful purpose, or by violating RAUL LOPEZ 's constitutional rights, or by falsely detaining the plaintiff, by conspiring against RAUL LOPEZ, or by interfering with plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.
42. The defendants, THE CITY OF NEW YORK, defendant' agents, servants, and/or employees conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.
43. The actions of the Defendants were the cause of RAUL LOPEZ 's distress.
44. RAUL LOPEZ is a reasonable man.
45. The emotional distress sustained by RAUL LOPEZ was severe and of a nature that no reasonable man could be expected to endure. (Agis v. Howard Johnson Co., 371 Mass. 140, 145 (1976).
46. As a result of the Defendants' extreme and outrageous conduct, Plaintiff was, is, and, with a high degree of likelihood, will continue to be emotionally distressed due to the

intentional exclusion. ("Extreme and outrages conduct is not required if the emotional distress resulted from the commission of another tort." American Velodur Metal, Inc. v. Schinabek. 20 Mass.App.Ct. 460, 470-471 (1985).

47. Defendant THE CITY OF NEW YORK is liable under the doctrine of *respondeat superior*.

48. As a result of the Defendants' extreme and outrageous conduct, Smith has suffered and will continue to suffer mental pain and anguish, severe emotional trauma, embarrassment, and humiliation.

49. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, the plaintiffs demand:

A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

C. Judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

D. Judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

F. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

WHEREFORE, the plaintiff demands judgment awarding damages and punitive damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: Astoria, New York
October 30, 2014



By: Tonino Sacco
SACCO & FILLAS, LLP

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Our File No.: 13189-14

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JUSTICE LOPEZ, AN INFANT BY HIS FATHER AND
NATURAL GUARDIAN, RAUL LOPEZ AND RAUL LOPEZ,
INDIVIDUALLY,

Plaintiffs,

-against-

THE CITY OF NEW YORK

Defendants.

INDEX NO. 310129/2011

**ATTORNEY'S
VERIFICATION**

Tonino Sacco, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of SACCO & FILLAS, LLP, the attorneys of record for the plaintiff.

I have read the foregoing Summons & Verified Complaint and know the contents
thereof; the same is true to my own knowledge except as to the matters therein stated to be
alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiffs because they are not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiff, information contained in the said plaintiff's file,
which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Astoria, New York
November 11, 2014

TONINO SACCO

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.

JUSTICE LOPEZ, AN INFANT BY HIS FATHER AND NATURAL GUARDIAN, RAUL
LOPEZ AND RAUL LOPEZ, INDIVIDUALLY
Plaintiffs,

-against-

THE CITY OF NEW YORK,
Defendant.

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: October 30, 2014

Signature: _____
Tonino Sacco, Esq.

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